

(6) Nothing in the principal Act shall be deemed to require the assent of His Majesty in Council before the legislature of a colony may make provisions in exercise of any power conferred by the principal Act or this Act, but no provision so made by a legislature shall have effect unless or until it is approved by His Majesty in Council.

(7) Any reference in the principal Act or this Act to the territorial waters of any territory or group shall include any inland waters.

2. This Act may be cited as the Colonial Naval Defence Act, 1949, and this Act and the principal Act may be cited together as the Colonial Naval Defence Acts, 1931 and 1949. Short title
and citation.

CHAPTER 19.

An Act to amend the provisions of the Education (Scotland) Act, 1946, relating to attendance at junior colleges, to the powers of education authorities to provide education for pupils belonging to the areas of other authorities and to enable persons to take advantage of educational facilities and to other matters; and to amend the provisions of other Acts relating to defective children and the employment of children.

[9th March 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. Sections thirty-nine, forty, forty-one and one hundred and thirty-seven of the Education (Scotland) Act, 1946 (which relate to attendance at junior colleges and to the effect of attendance notices on computation of working hours) shall come into operation on such day as the Secretary of State may appoint, being as early a day as he considers practicable; and the Seventh Schedule to the said Act (hereinafter referred to as "the principal Act") in so far as that Schedule relates to the said sections shall cease to have effect. Attendance
at junior
colleges.
9 & 10 Geo. 6.
c. 72.

2. In section twenty-four of the principal Act (which relates to the provision by an education authority for the education of pupils belonging to other areas), for subsection (3) there shall be substituted the following subsection:— Amendment
of s. 24 of
principal Act.

"(3) The Secretary of State may make regulations prescribing the areas to which particular classes of pupils receiving primary or secondary education are to be deemed

to belong for the purposes of this section and any such pupil to whom the regulations apply shall be deemed to belong to the area determined in accordance with the regulations. Any other pupil receiving primary or secondary education shall, for the aforesaid purposes, be deemed to belong to the area in which his parent is ordinarily resident, and any pupil receiving further education shall be deemed to belong to the area in which he himself is ordinarily resident :

Provided that any pupil who becomes ordinarily resident in any area wholly or mainly for the purpose of attending an educational establishment providing further education shall be deemed to belong not to that area but to any area to which he was deemed to belong immediately before he became so resident."

Dates for
commencing
and termin-
ating school
attendance.

3. For section thirty-three of the principal Act there shall be substituted the following section:—

" 33.—(1) The Secretary of State may from time to time require an education authority to fix for their area any or all of the following dates (hereinafter referred to as 'fixed dates')—

(a) two or more fixed dates for commencing school attendance ; and

(b) three or more fixed dates by reference to which dates for terminating school attendance (hereinafter referred to as 'school leaving dates') shall be ascertained.

(2) The education authority shall submit proposals for fixed dates to the Secretary of State, and the Secretary of State may approve the proposals or may after consultation with the authority and with such other persons as he thinks fit direct the authority to fix other dates. The authority shall thereupon fix the dates approved by the Secretary of State or the dates specified in the said direction as the case may be.

(3) A child who does not attain the age of five years on a fixed date for commencing school attendance shall for the purpose of such attendance be deemed to attain that age on the fixed date next following the fifth anniversary of his birth.

(4) School leaving dates shall be ascertained by reference to the fixed dates under paragraph (b) of subsection (1) of this section as follows—

(a) where a fixed date falls within a holiday period, the school leaving date ascertained by reference thereto shall be the first day of the holiday period ; and

(b) where a fixed date falls outwith a holiday period, that fixed date shall also be a school leaving date.

(5) Where the fifteenth anniversary of the day of the birth of a child for whom the upper limit of the school age is fifteen falls outwith a holiday period and does not fall on a school leaving date, the child shall for the purpose of terminating attendance at school be deemed to attain the age of fifteen on the school leaving date next following the said anniversary. Any other child for whom the upper limit of the school age is fifteen shall be entitled to terminate school attendance on the said anniversary. This subsection shall apply to a child for whom the upper limit of the school age is sixteen with the substitution of the word 'sixteen' for the word 'fifteen' and of the word 'sixteenth' for the word 'fifteenth', wherever those words occur.

(6) In this section the expression 'holiday period' means a period of more than nine consecutive days in which no meeting of the school is held, but does not include any period during which the school is closed for exceptional reasons unless the holiday period and the period of closure for exceptional reasons are consecutive. Exceptional reasons include national or local rejoicing or mourning, national or local emergency and the prevention of the spread of disease."

4.—(1) In section forty-three of the principal Act (which empowers education authorities to enable persons to take advantage of educational facilities) in subsection (1) for the words "resident in" there shall be substituted the words "belonging to".

Amendment
of s. 43 of
principal Act.

(2) At the end of the said section there shall be inserted the following subsections:—

"(4) For the purposes of this section, a pupil attending school shall be deemed to belong to the area in which his parent is ordinarily resident and any other person shall be deemed to belong to the area in which he himself is ordinarily resident:

Provided that—

(i) any such other person who becomes ordinarily resident in any area wholly or mainly for the purpose of attending a university or theological college or an educational establishment providing further education, shall be deemed to belong not to that area but to any area to which he was deemed to belong immediately before he became so resident; and

(ii) where any such pupil or other person to whom an award for a definite period has been made under this section ceases before the expiry of that period to belong to the area of the education authority by whom the award was made, he shall be deemed to continue to belong to that area until the expiry of the said period.

(5) Where the education authorities concerned are unable to agree as to the education area to which a person is to be deemed to belong for the purposes of this section, the question shall be determined by the Secretary of State."

Miscellaneous
amendments
of enactments.

5. The amendments set forth in Part I and Part II of the Schedule to this Act, being amendments which relate to minor matters, shall be made in the principal Act and in the Acts specified in the said Part II respectively.

Citation and
construction.

6.—(1) This Act may be cited as the Education (Scotland) Act, 1949.

2 & 3 Geo. 6.
c. 96.
10 & 11 Geo. 6.
c. 36.

(2) The Education (Scotland) (War Service Superannuation) Act, 1939, the Education (Scotland) Act, 1946, the Education (Exemptions) (Scotland) Act, 1947, and this Act shall be construed as one, and may be cited together as the Education (Scotland) Acts, 1939 to 1949.

Section 5.

SCHEDULE.

MINOR AMENDMENTS.

PART I.

AMENDMENTS OF THE PRINCIPAL ACT.

9 & 10 Geo. 6. c. 72.

Section three... In subsection (1) for the words "for whom primary, secondary or further education is provided by the authority" there shall be substituted the words "receiving primary, secondary or further education".

Section eleven ... For subsection (3) the following subsection shall be substituted:—

"(3) It shall be in the power of an education authority to provide—

(a) for pupils in attendance at any school, junior college or other educational establishment under their management, articles of clothing suitable for physical exercise or for other activities of the school, college or establishment for which special clothing is desirable, and

Section eleven—*cont.*

- (b) for persons who make use of facilities for physical training made available to them by the authority under subsection (1) of section three of this Act, articles of clothing suitable for physical exercise."

Section seventeen ... In subsection (1) for the words from "for all pupils" to the end of the subsection there shall be substituted the words "to enable them to carry the said scheme into effect."

Section twenty ... For section twenty the following section shall be substituted:—

"20.—(1) The Secretary of State may make regulations prescribing standards applicable to the premises or equipment of schools, junior colleges and other educational establishments under the management of education authorities, and such regulations may prescribe appropriate standards for such types of schools, junior colleges and other educational establishments as may be specified in the regulations. If the Secretary of State is satisfied, after consultation with the education authority, that it is impracticable or would be unreasonable to apply the standards prescribed in the regulations to the premises or equipment of a particular school, college or establishment, he may make an order prescribing modified standards for such school, college or establishment.

(2) Every education authority shall secure that any premises or equipment provided by them for a school, junior college or other educational establishment conform to the standards applicable to the school, college or establishment.

(3) Where the premises or equipment of any school, junior college or other educational establishment under the management of an education authority do not conform to the standards applicable to the school, college or establishment, it shall be in the power of the Secretary of State, after consultation with the education authority, to direct that the premises or equipment be brought into conformity with the said standards within a period to be specified in the direction; and it shall thereupon be the duty of the education authority to comply with the direction.

(4) With a view to securing that the premises and equipment of schools, junior

Section twenty—*cont.*

colleges and other educational establishments under the management of an education authority are maintained in such a condition as to contribute to the good health of the pupils, it shall be the duty of an education authority to cause their medical officers as part of their ordinary work from time to time to inspect and to report to them upon the said premises and equipment, and in making the said inspections the medical officers shall have special regard to the lighting, heating and ventilation, and to the sanitary arrangements."

Section twenty-three

In subsection (1) after the words "this Act" where they first occur there shall be inserted the words "and an education authority and any other local authority may make arrangements for co-operation or combination in the exercise of any functions which the authorities have respectively power to exercise;" and the following subsection shall be added to the end of the section:—

"(4) In this section the expression 'local authority' means a county, town or district council."

Section thirty-two ...

In subsection (4) for the words "that child" there shall be substituted the words "and the child is in attendance at a special school, he"

Section thirty-five ...

The following subsection shall be added at the end of the section:—

"(4) For the purposes of this section, a child who has been required to discontinue for any period his attendance at a school on account of his parent's refusal or failure to comply with the rules, regulations or disciplinary requirements of the school, shall, unless the court otherwise determines, be deemed to have failed without reasonable excuse to attend regularly at the school."

Section thirty-nine ...

In subsection (1) for the word "residing" there shall be substituted the words "ordinarily resident."

Section forty ...

In subsection (1) for the word "resides" there shall be substituted the words "is ordinarily resident."

Section forty-four ...

In subsection (1), in paragraph (a), the words "resident in their area" shall be omitted.

Section forty-five ...

In paragraph (c) after the word "paying" there shall be inserted the words "the whole or any part, as the authority think fit, of"

Section forty-six ... For the word " shall " where it first occurs there shall be substituted the words " may, in their discretion "

Section forty-eight ... In subsection (1) for the words " public school in their area " there shall be substituted the words " school under their management " ; after subsection (2) the following subsection shall be inserted :—

" (2A) Without prejudice to any powers conferred upon them by the last two foregoing subsections, an education authority may provide clothing free of charge—

(i) for any pupil who is a boarder at a school, or

(ii) for any pupil in attendance at a nursery school or a nursery class, under the management of the authority " ;

and in subsection (3) in paragraph (a) for the words " in the area of the authority in which he resides " there shall be substituted the words " under the management of the education authority in whose area he is ordinarily resident," and in paragraph (b) for the words " in the area " there shall be substituted the words " under the management."

After section forty-nine the following section shall be inserted :—

Provision of
clothing.

" 49A. Save as may be otherwise prescribed, provision of clothing by an education authority under any of the powers conferred by this Act may be made in such a way as to confer, at the option of the authority, either a right of property in the clothing or a right to use it only."

Section fifty-five ... In subsection (2), after the word " may " there shall be inserted the words " , within fourteen days after the date of issue thereof,"

Section fifty-six ... The following subsections shall be added at the end of the section :—

" (2) If, at any time after a report has been made under the foregoing provisions of this section, the local health authority or an authority or body responsible for the management of an institution in which the child is under care are of opinion that the decision recorded in the report ought to be reviewed, they shall notify the education authority of their opinion and thereupon

Section fifty-six—*cont.*

the education authority shall cause the child to be medically examined and the provisions of subsections (2) and (3) of section fifty-four of this Act shall apply for the purpose of such examination in like manner as they apply for the purpose of the duty of the authority under subsection (1) of the said section.

(3) If, after considering the advice given by the medical officer and any reports or information from the local health authority or from the authority or body responsible for the management of the institution in which the child is under care or from other persons, the education authority decide that the child is capable of receiving education at school or education or training in a special school and that it is not inexpedient that he should be educated or trained in association with other children, they shall cancel their original report and shall intimate the cancellation to the authority to whom the report was originally issued, to any other authority or body concerned, to the General Board of Control for Scotland and to the parent.

(4) Where an education authority refuse to cancel a report under the last foregoing subsection they shall intimate such refusal to the authority to whom the report was originally issued, to the authority or body responsible for the management of the institution in which the child is under care and to the parent of the child, and it shall be competent to such authority, body or parent, within fourteen days after receipt of such intimation to appeal against such refusal to the Secretary of State.

(5) On any appeal under the last foregoing subsection the Secretary of State may require the education authority to cancel the report or may confirm their refusal to do so.

(6) Subsections (2), (3), (4) and (5) of this section shall apply to notifications issued under paragraph (b) of subsection (2) of section two of the Mental Deficiency and Lunacy (Scotland) Act, 1913, and to reports issued under subsection (1) of section forty-two of the Education (Scotland) Act, 1945, as they apply to reports issued under subsection (1) of this section."

- Section fifty-seven ... The following subsection shall be added at the end of the section :—
“(2) The provisions of subsections (2) and (3) of section fifty-four of this Act shall apply for the purpose of the duty of an education authority under the last foregoing subsection in like manner as those provisions apply for the purpose of the duty of the authority under subsection (1) of the said section.”
- Section fifty-eight ... For the words “these Acts” there shall be substituted the words “the Mental Deficiency Acts”.
- Section fifty-nine ... In subsection (1), for the proviso the following proviso shall be substituted :—
“Provided that where the Secretary of State certifies that on account of urgency or any special reason any regulations ought to come into immediate operation, he may make such regulations to come into operation immediately as provisional regulations, and shall include a regulation prescribing a period for which the provisional regulations are to remain in force. The provisional regulations shall cease to have effect at the end of the said period unless continued in force by regulations made in accordance with the foregoing provisions or by further provisional regulations.”
- Section seventy ... In paragraph (1), for the words “of conducting leaving certificate examinations” there shall be substituted the words “incurred by the Secretary of State in conducting examinations for the award of certificates relating to secondary education”.
- Section seventy-seven ... In subsection (3) after the words “for the purposes of” there shall be inserted the words “paragraph (c) of subsection (5) of section one and”; and for the word “section” where it last occurs there shall be substituted the word “sections”.
- Section eighty-one ... The following paragraph shall be added at the end of subsection (5) :—
“and
(c) the managers of an approved school within the meaning of the Children and Young Persons (Scotland) Act, 1937, and the certificated teachers employed therein.”

- Section ninety-seven The words from "and satisfies" to "do so" shall be omitted.
- Section ninety-eight... For the word "subsection" there shall be substituted the word "section".
- Section one hundred and three. In subsection (3) for the words "rules under the Teachers Superannuation Scheme" there shall be substituted the words "the Teachers Superannuation Scheme or rules made thereunder."
- Section one hundred and twenty-three. In subsection (1) after the word "heard" there shall be inserted the words "at such inquiry".
- Section one hundred and twenty-five. In subsection (1) after the word "presented" there shall be inserted the words "or, if the Court of Session have refused the prayer of a petition presented to them under the said subsection".
- Section one hundred and thirty-six. In subsections (1) and (2) for the words "on the roll of a school in their area" there shall be substituted the words "attending a school under their management".
- Section one hundred and forty. For section one hundred and forty the following section shall be substituted:—
 " 140.—(1) Unless the context otherwise requires, no power or duty conferred or imposed by this Act on the Secretary of State, on education authorities or on parents or young persons shall be construed as relating to any person to whom this section applies :
 Provided that nothing in this section shall prevent an education authority from providing or securing the provision of education for any such person if he is in their opinion capable of deriving benefit therefrom.
 (2) The persons to whom this section applies are :—
 (a) any person who is the subject of an order for his detention or of a warrant for his removal and custody under the Lunacy (Scotland) Acts, 1857 to 1913 ;
 (b) any person who is being entertained and kept in a mental hospital in pursuance of section fifteen of the Lunacy (Scotland) Act, 1866 ;

Section one hundred
and forty—*cont.*

- (c) any person for whose custody during His Majesty's pleasure His Majesty is authorised to give order ;
- (d) any person who is a prisoner whom the Secretary of State has in pursuance of any Act directed to be removed to a mental hospital for criminal lunatics or to the criminal lunatic department of Perth prison or to a mental hospital ;
- (e) any person placed in an institution or a certified house or under guardianship under section four of the Mental Deficiency and Lunacy (Scotland) Act, 1913, or who is the subject of an order under any such order as is mentioned in section five of that Act ;
- (f) any person who is for the time being the subject of a report in force under section fifty-six of this Act ; and
- (g) any person who is detained in pursuance of an order made by any court or of an order of recall made by the Secretary of State ”.

Section one hundred
and forty-three.

In subsection (1), in the definition of “ premises ”, after the word “ includes ” there shall be inserted the words “ the site of such establishment ” ; at the end of the definition of “ pupil ” there shall be inserted the words “ and a pupil shall be deemed to be attending or in attendance at a school if he is shown by the register of admission and withdrawal kept at the school in accordance with regulations made under this Act, or by any other register approved by the Secretary of State and kept for a similar purpose, to have been admitted to, but not to have been withdrawn from, or to have been readmitted to, and not thereafter to have been withdrawn from, the school ; and similar expressions, whether relating to schools or to other educational establishments, shall be similarly interpreted ; ” and in the definition of “ school ”, for the word “ providing ” there shall be substituted the words “ for the provision of ”.

PART II.

AMENDMENTS OF OTHER ENACTMENTS.

The Mental Deficiency and Lunacy (Scotland) Act, 1913.

3 & 4 Geo. 5. c. 38.

Section two ... ∴ For subsection (4) the following subsection shall be substituted :—

(4) When an education authority in pursuance of section fifty-six of the Education (Scotland) Act, 1946, have issued to a local health authority a report that a child has been found incapable of receiving education or training in a special school, the local health authority shall, unless and until such report is cancelled, be the local authority concerned under this Act in the case of that child.

Section three... ∴ For sub-paragraph (v) of paragraph (c) of subsection (1) there shall be substituted the following sub-paragraph :—

“(v) who is for the time being the subject of a report in force under the enactments relating to education that he has been found incapable of receiving education at school, or that by reason of a disability of mind he may require to be dealt with under this Act after leaving school; or”

Section seventy-six ... After the definition of the expression “institution” there shall be inserted the words :—

“The expression ‘suitable provision’ means, in relation to a defective for whom a school board are required to make provision, special educational treatment within the meaning of the Education (Scotland) Act, 1946.”

The Children and Young Persons (Scotland) Act, 1937.

1 Edw. 8. & 1 Geo. 6. c. 37.

Section twenty-eight For paragraph (a) of subsection (1) as amended by the Fourth Schedule to the Education (Scotland) Act, 1945, there shall be substituted the following paragraph :—

“(a) before the thirteenth anniversary of the day of his birth when the upper limit of the school age is fifteen, or before the fourteenth anniversary of such day when the said upper limit is sixteen.”

Section thirty-two ... In subsection (3) for the words from "grant a licence" to "residing in their area" there shall be substituted the words "while the upper limit of the school age is fifteen, grant a licence to a child who has actually attained the age of thirteen years and is residing in their area, and, while the said upper limit is sixteen, grant a licence to a child who has actually attained the age of fourteen years and is so resident."

Section thirty-seven... For paragraph (d) there shall be substituted the following paragraph—

"(d) Any reference to a day on which a child is under obligation to attend school shall be construed as a reference to a day upon which a meeting of the school he is attending is held."

After paragraph (f) there shall be added the following paragraph:—

"(g) The expression 'the upper limit of the school age' means the upper limit for the time being fixed by virtue of section thirty-two of the Education (Scotland) Act, 1946, but without regard to the provisions of subsection (4) of that section or of section thirty-three of that Act (which respectively relate to the age of pupils requiring special educational treatment and to deeming pupils not to have attained a given age until a fixed date after they actually attain it)."

The National Health Service (Scotland) Act, 1947.

10 & 11 Geo. 6. c. 27.

Section fifty-one ... In subsection (1), for the proviso there shall be substituted the following proviso:—

"Provided that this subsection shall not apply in the case of a person who has been reported as aforesaid and in whose case the report has been cancelled, or in the case of a mental defective in a mental deficiency institution."

Eleventh Schedule ... Part I, so far as it relates to section one hundred and forty of the Education (Scotland) Act, 1946, shall be omitted.
